

IN THE COUNTY COURT OF THE
TWELFTH JUDICIAL CIRCUIT, IN
AND FOR MANATEE COUNTY,
FLORIDA

CASE NO.: 2025-CC-003916-AX

COLONIAL MANOR MHC
HOLDINGS, LLC,

Plaintiff,

v.

WANDA D. CONNELL, QUENTIN
JULIAN CONNELL and ANY
UNKNOWN PARTY(s) IN
POSSESSION,

Defendants.

_____ /

**DEFENDANTS' RESPONSE IN OPPOSITION TO PLAINTIFF'S MOTION TO
STRIKE FIRST AND SECOND AFFIRMATIVE DEFENSES**

COMES NOW, the Defendants', WANDA CONNELL and QUENTIN JULIAN CONNELL, by and through their undersigned counsel and hereby files this Response in Opposition to Plaintiff's Motion to Strike Affirmative Defenses (the "Motion") and states as follows:

1. On October 29, 2025, Defendants served their Answer and Affirmative Defenses to Plaintiff's Complaint.
2. On January 26, 2026, which is more than twenty (20) days after service of Defendants' Answer and Affirmative Defenses, Plaintiff filed the Motion seeking

to strike Defendants' first and second affirmative defenses on grounds of legal insufficiency.

3. The Motion is untimely under Florida Rule of Civil Procedure 1.140(b) and should be denied on that basis alone.
4. Florida Rule of Civil Procedure 1.140(b) expressly provides that an objection for "failure to state a legal defense in an answer or reply shall be asserted by motion to strike the defense within 20 days after service of the answer or reply." (Emphasis added.)
5. The Motion challenges the legal sufficiency of Defendants' affirmative defenses, asserting that they fail to state cognizable legal defenses. Such challenges fall squarely under Rule 1.140(b) and are subject to the mandatory 20-day deadline.
6. To the extent Plaintiff attempts to characterize the Motion as one under Rule 1.140(f), such characterization is improper. The substance of the Motion attacks the legal validity of the defenses, not merely extraneous matter, and thus must comply with Rule 1.140(b)'s deadline.
7. Plaintiff has waived the right to challenge the legal sufficiency of the defenses by failing to timely file the Motion.
8. Even if the Court were to reach the merits, Defendants' affirmative defenses are legally sufficient and properly pled under Florida law.
9. Substantively, the first affirmative defense is legally sufficient. It asserts that no named Defendants resided at Lot 218 at the time of filing or currently, which

directly challenges the factual basis for Plaintiff's claim that Defendants' violated park rules by allowing unapproved persons to reside there.

10. The second affirmative defense is also legally sufficient. Defendants' payment of rent demonstrates compliance with statutory obligations under Fla. Stat. § 723.063(2) and supports arguments against possession. This affirmative assertion defeats or mitigates Plaintiff's claim.

WHEREFORE, Defendants' respectfully requests that the Court deny Plaintiff's Motion to Strike First and Second Affirmative Defenses in its entirety and grant such other relief as the Court deems just and proper.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was served to William C. Price III, Esq. via E-Filing Portal and electronic mail to Pleadings@wcpricelaw.com on this 29th day of January 2026.

Dated this 29th day of January 2026.

Respectfully Submitted,

/s/ Jason T. Barrack

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